

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Daniel Cooper	Team: Squad #07	CCRB Case #: 201608940	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 10/15/2016 10:40 PM, Sunday, 10/16/2016 12:00 AM	Location of Incident: The basement of § 87(2)(b); 67th Precinct stationhouse	18 Mo. SOL 4/15/2018	Precinct: 67		
Date/Time CV Reported	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 10/24/2016 10:51 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Kenneth Triolo	13535	957229	067 PCT
2. SGT Alan Chau	01257	940986	067 PCT
3. Officers			067 PCT
4. POF Christine Roman	18956	959153	067 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Azdren Dema	04022	954721	067 PCT
2. POM Rodney Davis	15749	957518	067 PCT
3. POM Charles Murray	19156	958967	067 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Alan Chau	Abuse: On October 15, 2016, Sergeant Alan Chau entered and searched the basement of § 87(2)(b), in Brooklyn.	A . Exonerated
B . POM Kenneth Triolo	Abuse: On October 15, 2016, Police Officer Kenneth Triolo drew his gun inside the basement of § 87(2)(b), in Brooklyn.	B . Exonerated
C . Officers	Abuse: On October 15, 2016, officers damaged § 87(2)(b)'s property inside the basement of § 87(2)(b), in Brooklyn.	C . Officer(s) Unidentified

Officer(s)	Allegation	Investigator Recommendation
D . POF Christine Roman	Abuse: On October 16, 2016, Police Officer Christine Roman refused to provide her name and shield number to § 87(2)(b) inside the 67th Precinct stationhouse, in Brooklyn.	D . Unsubstantiated

Case Summary

On October 15, 2016, at 10:40 p.m., § 87(2)(b) an occupant of § 87(2)(b), in Brooklyn, contacted 311 and complained of noise coming from the building's basement. PO Kenneth Triolo, PO Christine Roman, Sgt. Alan Chau and other officers from the 67th Precinct responded to the location. Upon entering the basement, Sgt. Chau and PO Triolo searched § 87(2)(b) room (**Allegation A**). Sgt. Chau, PO Triolo, and PO Roman knocked on the basement door until § 87(2)(b) opened the door and let the officers enter. When PO Triolo entered the room, he allegedly drew his gun (**Allegation B**). Once inside the room, the officers found § 87(2)(b) and § 87(2)(b). PO Triolo then searched the remainder of the basement, including § 87(2)(b)'s room (**within Allegation A**). § 87(2)(b) and § 87(2)(b) were arrested § 87(2)(b) and transported to the 67th Precinct stationhouse, where they were ultimately released with desk appearance tickets (DAT). Later that evening, the building's superintendent, § 87(2)(b) returned to the building and noticed the officers had allegedly damaged one of the basement doors (**Allegation C**).

On October 16, 2016, after being issued a DAT at the 67th Precinct stationhouse, § 87(2)(b) approached PO Roman and requested her name and shield number, which she allegedly did not provide (**Allegation D**).

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)] There is no video evidence for this case. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- Due to § 87(2)(b) and § 87(2)(b)'s arrests, this case was deemed unsuitable for mediation.
- As of January 18, 2017, a Notice of Claim inquiry for § 87(2)(b) and § 87(2)(b) is pending (Board Review 10).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer Histories

- This is the second CCRB complaint filed by § 87(2)(b) § 87(2)(b). This is the first complaint in which § 87(2)(b) and § 87(2)(b) are victims (Board Review 14).
- Sgt. Chau has been a member of service for ten years and has been the subject of two allegations, none of which have been substantiated § 87(2)(g).
- PO Triolo has been a member of service for two years and has been the subject of one other complaint which is currently under investigation § 87(2)(g).
- PO Roman has been a member of service for one year, and this is her first CCRB complaint.

Potential Issues

§ 87(2)(b) stated that § 87(2)(b) and § 87(2)(b) were the occupants of the two rooms in the basement. Contact was established with § 87(2)(b). However, he was uncooperative with the investigation. Despite contact attempts and field work to reach § 87(2)(b) contact was never established with him. The additional civilians that were present during the incident were not interviewed § 87(2)(g)

Explanation of Subject Officer Identification

- Sgt. Chau acknowledged that PO Triolo called him to the scene before entering the basement, and as the supervisor, he made the decision to enter the basement. § 87(2)(g)
- § 87(2)(b) alleged that the officers knocked on the door, but he did not allege any damage to the door and did not mention any excessive banging or knocking that would be consistent with causing damage to the door. Photographs of the door show an indentation approximately four inches in length (Board Review 33). Although § 87(2)(b) alleged that the damage to the door was caused by the officers, he was not present at the time the damage occurred. Additionally, there were no civilian witnesses on the outside of the door who would have seen what happened. Sgt. Chau, PO Triolo, and PO Roman were consistent that they only used hand knocks, not equipment, to knock on the door. § 87(2)(g)

Findings and Recommendations

Allegation A- Abuse of Authority- On October 15, 2016, Sergeant Alan Chau entered and searched the basement of § 87(2)(b), in Brooklyn.

§ 87(2)(b) alleged that he, § 87(2)(b) and § 87(2)(b) were all in the basement recreational room when officers knocked on the door. § 87(2)(b) opened the door and the officers entered the recreational room. The officers also went into the room where § 87(2)(b) lives, which is positioned to the left of the recreational room, and they looked inside of the boiler room. § 87(2)(b) was unaware of whether the officers opened any containers, drawers or closets during their search. § 87(2)(b) and § 87(2)(b) all had keys to the basement, as they are § 87(2)(b) assistant superintendents. The men informed the officers they had permission from § 87(2)(b) to be in the basement, and were provided opportunities to call his cell phone so that the officers could verify this, but they were unable to reach him. They were subsequently arrested § 87(2)(b), § 87(2)(a) 160.50 (Board Review 26).

§ 87(2)(b) who was not home during the incident, stated he had given his friends permission to be in the basement to watch a cricket game. § 87(2)(b) confirmed § 87(2)(b) and § 87(2)(b) are his assistant superintendents, they are responsible for taking care of the building in his absence and that they both live in the basement (Board Review 27).

§ 87(2)(b) the building's owner, was not present during the incident. On the date of the incident, he was contacted by the police and confirmed that § 87(2)(b) was the only superintendent of the building. He made no mention of any additional superintendents or acknowledge anyone living in the basement. One tenant of the building, identified via investigation as § 87(2)(b) repeatedly calls 311 to report that people are trespassing in the basement (Board Review 22).

Sgt. Chau stated that upon entering the building's lobby, he encountered three female tenants who told him there were people in the basement who were trespassing. Sgt. Chau then went to § 87(2)(b) apartment, where he was able to feel vibrations and hear noise emanating from the basement, and was informed that the men trespass frequently and cause a lot of noise. Although the officers initially responded to a noise complaint, after interviewing § 87(2)(b) Sgt. Chau began investigating whether the individuals were trespassing.

Sgt. Chau entered the basement through the courtyard and saw there was no light in the hallway, but two doors; one located on the left side of the hallway and the other on the right. The left door was ajar and Sgt. Chau entered, visually scanned the room for people but only observed a bed and other home items, so he subsequently exited the room. He then went to the door on the right where he heard noise and talking. After knocking for approximately 15 minutes, a male opened the door and Sgt. Chau walked inside. The room looked like a “make-shift recreational room” but also stated that the room had poor lighting, the floor was cracked and dirty, there were wires hanging, old furniture, and it did not appear to be in a livable condition. While Sgt. Chau stood in this room, he saw that there were possibly other rooms in the basement, but he only remained in the “main part” of this room. Sgt. Chau did not know if PO Triolo, PO Roman or another officer searched the other rooms in the basement. Sgt. Chau decided to arrest seven of the males for trespassing, as they could not prove they lived there or had permission to be there, but he did not arrest § 87(2)(b) because after speaking to him, he explained that he was homeless and did not have another place to stay (Board Review 25).

PO Triolo stated that to access the basement, you had to first go through a courtyard and an open entrance which led to a hallway. Once in the hallway, PO Triolo took one step into the first door located on the left which was left ajar. Once inside, he could see indications that that someone lived at the location, including a bed, clothes on the floor and a cable box. PO Triolo only knelt down to look underneath the bed in order see if there was anyone present inside the room. PO Triolo denied that he looked anywhere else.

PO Triolo then knocked on the door to the right where he had heard the music. It was not until 15 minutes later that the music quieted, and shortly thereafter, § 87(2)(b) came to the door and opened it. PO Triolo and the other officers entered the basement and conducted a protective sweep for any individuals who may have been hiding in the basement. He encountered three males who were hiding in dark areas of the basement, asked them to exit their hiding spots, and they complied. When no one was able to prove they lived at the location or get in touch with § 87(2)(b) who reportedly provided them permission to be there, the men were arrested (Board Review 24).

PO Roman confirmed the decrepit state of the basement, including one room where a person appeared to be living. The officers knocked on the recreational room door for five to ten minutes before a male, identified via investigation as § 87(2)(b) opened the door for the officers to enter. PO Roman recalled PO Triolo entering one other room, but was unable to recall the circumstances or whether any officer conducted a search. After the men could not reach § 87(2)(b) to verify that they were legally, Sgt. Chau determined that the men would be arrested § 87(2)(b) (Board Review 23).

Fieldwork was conducted and the location was photographed. Photographs of the front main entrance of the building show signs posted which note, “Tenants and their guests only. No Trespassing Violators will be subject to arrest” (Board Review 15). Photographs of the entrance to the basement show that it is accessible from the main lobby and opens to a courtyard area. The entrance to the basement is an open entrance without a door (Board Review 16). Photographs of the room belonging to § 87(2)(b) show a cutaway part of the basement with an open door where clothes are hanging. Beyond the door is a room which has a bed, mirror, dresser, and clothes (Board Review 17). Photographs of the “makeshift recreational room” show the main area where there is a television, couches, a bar, and a table. The photographs also show more than one back rooms with poor lighting. The room to the right of the recreational room, reportedly belonging to § 87(2)(b) had no door and only a piece of particle board blocking the entry into that room. Although the room contained a bed and clothes atop the bed, there was no light in the room. The photographs also show unfinished rooms

with exposed pipes, exposed ceilings, poor lighting, and that the basement is used to store building and cleaning supplies (Board Review 19).

The 311 Service Request, the arrest reports and trespass affidavits corroborate the officers' statements that, following a 311 call, they conducted an investigation into a noise complaint. Upon going into the basement, the officers found at least seven males who were playing music and talking loudly. When the males were questioned if they lived at the location, they stated that they did not (Board Review 3, 8 and 20).

"An individual has no expectation of privacy in a basement room accessible from a lobby, even when the individual was found lying on a mattress in a room with clothing on the floor." People v. Phillips, 118 A.D.2d 600, 601 (2nd Dept. 1986) (Board Review 30). "A warrantless search may only be challenged by one having a reasonable expectation of privacy in the place of the search," People v. Mills, A.D.2d 520 N.Y.S. 2d 387 (N.Y. App Div.) (Board Review 31).

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

[REDACTED] Therefore, it recommended that **Allegation A** be closed as **Exonerated**.

Allegation B- Abuse of Authority- On October 15, 2016, Police Officer Kenneth Triolo drew his gun inside the basement of § 87(2)(b), in Brooklyn.

§ 87(2)(b) alleged that an officer, identified via the investigation as PO Triolo, had his gun drawn when he opened the door, but once he entered, he holstered his weapon (Board Review 26).

PO Triolo acknowledged drawing his gun during this incident. He did not recall whether he had it drawn or pointed immediately upon entering the basement, but noted that he did draw his weapon twice while he conducted a protective sweep for any individuals who may have been hiding in the basement. He did find three men hiding in dark areas of the basement, and they voluntarily stepped out of hiding upon command. After conducting the sweep, PO Triolo holstered his weapon. PO Triolo stated that he drew his weapon because he was alone while conducting the sweep, the basement had poor lighting conditions and there was a possibility that one of the individuals who was hiding could have had a weapon (Board Review 24).

Sgt. Chau and PO Roman maintained that they were unaware or did not witness an officer draw or point their gun at any point during this incident (Board Review 26 and 23).

“An officer may draw their firearm if they have a reasonable fear for their own or any other person’s safety.” PD v. Gliner, OATH Index No. 955/00 (Board Review 28).

§ 87(2)(g) [REDACTED]

§ 87(2)(g) [REDACTED]

§ 87(2)(g) [REDACTED]

[REDACTED] It is therefore recommended that **Allegation B** be closed as **Exonerated**.

Allegation C- Abuse of Authority- On October 15, 2016, officers damaged § 87(2)(b) s property inside the basement of § 87(2)(b), in Brooklyn.

§ 87(2)(b) who was not present at the time of the entry, alleged that officers damaged the basement door. Photographs provided to the investigation by § 87(2)(b) depict a four-inch indentation with paint-chipped from the door above the door knob (Board Review 33).

§ 87(2)(b) who was inside of the room of the door the officers were knocking on, alleged that the

officers knocked approximately ten to fifteen times, but did not allege the officers used tools to knock on the door, or that he ever observed any damage to the door.

Sgt. Chau, PO Triolo and PO Roman were all interviewed and stated that they only knocked on the door regularly. They denied using any type of instrument to knock on the door and they all denied damaging the door or seeing another officer do so.

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] Therefore, it is recommended that **Allegation C** be closed as **Officer(s) Unidentified**.

Allegation D- Abuse of Authority- On October 16, 2016, Police Officer Christine Roman refused to provide her name and shield number to § 87(2)(b) inside the 67th Precinct stationhouse, in Brooklyn.

§ 87(2)(b) stated the following day that he went to the 67th Precinct stationhouse and spoke to PO Roman. § 87(2)(b) told PO Roman that he wanted her name and shield number and that he wanted a copy of the report. At this point, Sgt. Chau approached § 87(2)(b) and told him to leave the stationhouse. § 87(2)(b) then left the stationhouse without obtaining PO Roman's name and shield number.

PO Roman stated that while she was returning over \$800 in vouchered money to one of the arrestees, § 87(2)(b) approached and began speaking to her about his arrest. § 87(2)(b) walked closer to PO Roman, at which point she asked him to step back. Sgt. Chau approached § 87(2)(b) and explained that he had been released with a DAT and told him to leave the stationhouse. PO Roman denied that § 87(2)(b) requested her name and shield at that time. At approximately 12:00 p.m., while she was in the back office preparing to leave for the day, PO Roman saw § 87(2)(b) pointing at her and saying that she was his arresting officer. PO Roman could hear § 87(2)(b) stating that he wanted the names and shield numbers of his arresting officer and all the officers that were present at the time of his arrest. PO Roman stated that despite not being § 87(2)(b)'s arresting officer, she wrote Sgt. Chau's PO Triolo's and her name on a piece of paper that was provided to § 87(2)(b).

PO Triolo did not hear § 87(2)(b) request any officers' name and shield numbers, and he denied interacting with § 87(2)(b) after he was issued his DAT. Sgt. Chau acknowledged that after he had signed § 87(2)(b)'s DAT, he went home shortly after that and did not interact with § 87(2)(b) again. Sgt. Chau denied that he heard § 87(2)(b) request an officer's name and shield number.

"Members of service are required to courteously and clearly state their names, shield numbers and command, or otherwise provide them, to anyone who requests them to do so, "NYPD Patrol Guide, Section 203-09 (Board Review 32).

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g)

Therefore, it is recommended that **Allegation D** be closed as **Unsubstantiated**.

Squad: 07

Investigator:	_____	<u>Daniel Cooper</u>	_____
	Signature	Print	Date

Squad Leader:	_____	<u>Diana P. Townsend</u>	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date